

23STCV12205 23STCV12205

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 23STCV12205 Hearing Date: June 24, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

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MOON POOL LLC, a California limited liability company,

Plaintiff,

vs.

Bruce Hitchman, et al.,

Defendants.

Case No.:

23STCV12205

Hearing Date:

June 24, 2026

[TENTATIVE] ORDER RE: MOTIONS TO BE RELIEVED AS COUNSEL

I. BACKGROUND

On August 5, 2024, Plaintiff Moon Pool LLC ("Plaintiff") filed the operative Third Amended Complaint ("TAC") against Defendants Bruce Hitchamn, Brett Hitchman, the Administrators of the Estate of Jonathan H. Hoffman a/k/a Jonathan Harry Hoffman, and DOES 1 through 10 (collectively, "Defendants"), inclusive for: (1) Breach of Fiduciary Duty; (2) Civil Conspiracy/Aiding and Abetting Breach of Fiduciary Duty; (3) Breach of Oral Contract; (4) Indemnity; (5) Intentional Interference with Contract; (6) Intentional Interference with Prospective Economic Advantage; and (7) Declaratory Relief.

On August 15, 2024, Defendants Bruce Hitchamn, Brett Hitchman, the Administrators of the Estate of Jonathan H. Hoffman a/k/a Jonathan Harry Hoffman (collectively, "Cross-Complainants" or "Hoffman Estate") filed the operative First Amended Cross-Complaint ("FACC") against Cross-Defendants Dustin Wolff, Stephanie Wolff, Wolff Marketing Enterprises, LLC ("WME"), and Cypress Moon Enterprises, LLC ("CME") (collectively, "Cross-Defendants"), alleging causes of action for: (1) Declaratory/Injunctive Relief; (2) Breach of Contract; (3) Breach of Fiduciary Duty (4) Conversion; (5) Accounting; (6) Constructive Trust; (7) Civil Theft; and (8) Conversion.

On September 4, 2024, the Hoffman Estate filed their Answer to the TAC. On October 21, 2024, Cross-Defendants Stephanie Wolff and CME filed their joint Answer to the FACC. On November 14, 2024, Cross-Defendants Dustin Wolff and WME filed their joint Answer to the FACC.

On March 4, 2026, Stephen J. Erigero and all attorneys at Ropers Majeski, PC ("Counsel") filed Motions to be Relieved as Counsel for Cross-Defendants Dustin Wolff and WME. The motions are unopposed.

II. LEGAL STANDARD

The court may order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (Code Civ. Proc., § 284, subd. (2).) "The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court." (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133.)

An application to be relieved as counsel must be made on Judicial Counsel Form MC-051 (Notice of Motion and Motion) (Cal. Rules of Ct., Rule 3.1362, subd. (a)), MC-052 (Declaration) (Cal. Rules of Ct., Rule 3.1362, subd. (c)), and MC-053 (Proposed Order) (Cal. Rules of Ct., Rule 3.1362, subd. (e)). The proposed order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. (Cal. Rules of Ct., Rule 3.1362, subd. (e).)

Further, the requisite forms must be served on the client and all other parties who have appeared in the case. (Cal. Rules of Ct., Rule 3.1362, subd. (d).) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules of Ct., Rule 3.1362(e).) A motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

III. DISCUSSION

Here, Counsel has filed forms MC-051 and MC-052 and has lodged with the court a copy of the proposed order on form MC-053 as required. (Cal. Rules of Court, rule 3.1362.) Counsel states the instant motions were filed for the following reason: "Adequate grounds exist under Rules of Professional Conduct, Rule 1.16 to permit counsel to withdraw. Client did not voluntarily [consent] to counsel's request to be relieved as counsel." (MC-052, ¶12.) Counsel further declares the moving papers and accompanying forms have been personally served on Cross-Defendants Dustin Wolff and WME. (MC-052, ¶13.) However, there is no proof of service filed showing that Cross-Defendants Dustin Wolff and WME were served with the moving papers as stated. By contrast, the proof of service accompanying the moving papers demonstrates that all the other parties who have appeared in this case were served with required forms. (Cal. Rules of Ct., Rule 3.1362, subd. (d).) Similarly, the proposed orders do not include all of the hearings scheduled in this action granted at the time of

the filing of the motions, only an OSC re Status of Plaintiff's representation and Trial Setting Conference were set for hearing on April 8, 2026, this hearing is only mentioned in the MC-052 form (declaration) not the MC-053 form (proposed order). (MC-052, ¶14; MC-053, ¶17.)

Nevertheless, the jury trial is set for January 25, 2027, which is seven months away. Thus, Cross-Defendants Dustin Wolff and WME have sufficient time before trial to retain new counsel. As such, there would be no prejudice in allowing Counsel to withdraw. Finally, the fact that the corporate or similar entity Defendant will be without representation is not a basis for denial of the motion to be relieved as counsel. As explained by the Court of Appeal in *Thomas G. Ferruzzo, Inc. v. Superior Court* (1980) 104 Cal.App.3d 501, 504: "There are two concepts, not one, which are here involved. The first is the principle supported by [*Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724] that a corporation may not proceed in propria persona. The second is that an attorney, given proper grounds, may be permitted by the court to withdraw as attorney of record. These two concepts are not inconsistent in the case of a corporate client. An attorney may be allowed to withdraw without offending the rule against corporate self-representation. [¶] The effect of withdrawal is to leave the corporation without representation and without the ability to practice self-representation. For the uncooperative corporate client who has not been willing to bring in new counsel, granting of the withdrawal motion will put extreme pressure on it to obtain new counsel of record for should it fail to do so it risks forfeiture of its rights through non-representation."

IV. CONCLUSION

Based on the foregoing, Counsel Stephen J. Erigero and all attorneys at Ropers Majeski, PC's Motions to be Relieved as Counsel are CONDITIONALLY GRANTED.

Counsel Stephen J. Erigero and all attorneys at Ropers Majeski, PC must file proof of service that Cross-Defendants Dustin Wolff and Wolff Marketing Enterprises, LLC were personally served with the moving papers within five (5) calendar days of this order.

Counsel Stephen J. Erigero is ordered to give notice.

DATED: June 24, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.